

Broad Agency Announcement with Calls

Overview Information

NAICS Code: The NAICS Code for this acquisition is **541715 (Research and Technology in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology))**, and the small business size standard is **1,000 employees**.

Federal Agency Name: Air Force Research Laboratory, AFRL/RV Sensors Directorate

Broad Agency Announcement Title: Kaiju

Broad Agency Announcement Type: This is the Initial Announcement

Broad Agency Announcement Number: FA8650-22-S-1004

THIS IS A BROAD AGENCY ANNOUNCEMENT (BAA) THAT WILL SOLICIT WHITE PAPERS/PROPOSALS THROUGH CALLS. THIS ANNOUNCEMENT POSTS THE BASIC BAA AND DOES NOT REQUEST SUBMITTALS AT THIS TIME. THE BASIC BAA WILL REMAIN OPEN FOR CALLS UNTIL 12 MAY 2027.

Calls (One-Step or Two-Step) - See Section IV for instructions:

Over the period of this BAA, calls may be issued requesting white papers or proposals for specific technical area(s). It will be determined on a call by call basis whether the announcement is a two-step (white papers) or one-step (proposals). Each call will contain specific requirements and any pertinent information. White papers/proposals submitted in response to each call will be accepted as specified and evaluated in accordance with the Proposal Review Information (Section V1 and V2). Offerors should monitor the System for Award Management (SAM) website at <http://www.SAM.gov> in the event this announcement is amended or calls are issued.

White Paper/Proposal Due Date and Time:

ONE-STEP Call

- PROPOSAL DUE DATE AND TIME - to be determined (TBD) on individual calls.

TWO-STEP Call

- First Step: WHITE PAPER DUE DATE AND TIME - TBD on individual calls.
- Second Step: PROPOSAL DUE DATE AND TIME - To be provided in “Requests for Proposals (RFP)” sent to offerors whose white papers are considered to meet the needs of the Air Force (AF).

Delivery Instructions: Due to COVID 19, the AF requests **electronic proposals** be submitted using BOTH DoD SAFE (primary method) and email (backup method) to the following addresses:

Jennifer M. Skalski, Contracting Officer, jennifer.skalski@us.af.mil
Caleb Rose, Contract Specialist, caleb.rose.1@us.af.mil

The maximum email file size the Government can receive is 20 MB.

If the contractor needs a DoD SAFE drop-off invite from the AF, please send that request to jennifer.skalski@us.af.mil and caleb.rose.1@us.af.mil **no later than 7 days prior to the due date of proposals** to ensure a drop off code is provided in a timely manner.

Solicitation Request: Air Force Research Laboratory, AFRL/RY Sensors Directorate, Wright Patterson Air Force Base is soliciting technical and cost proposals on the research effort described below.

Type of Contract/Instrument: The Air Force reserves the right to award the instrument best suited to the nature of research proposed. Accordingly, the Government may award any appropriate contract type under the FAR or Other Transaction (OT) for Prototype, grant, cooperative agreement, or OT for Research. The Air Force may also consider award of an appropriate technology transfer mechanism if applicable. It is anticipated that awards under this BAA will generally be Cost Plus Fixed Fee. Cost reimbursement contracts require successful offerors to have an accounting system considered adequate for tracking costs applicable to the contract.

Estimated Program Cost: The total estimated program value is \$300,000,000.00 with multiple awards ranging from \$1,000,000.00 to \$95,000,000.00 (The AF reserves the right to exceed amounts if determined to be in the best interest of the Government).

Anticipated Number of Awards: The Air Force anticipates awarding eight (8) awards off of eight (8) calls under this announcement. However, the Air Force reserves the right to issue more or less than the anticipated number of calls and award zero, one, or more contracts for all, some or none of the solicited effort based on the offeror's ability to perform desired work and funding fluctuations. There is no limit to the number of contracts that may be awarded to an individual offeror.

Brief Program Summary: The objective for Kaiju is to research, develop and transition advanced electronic warfare (EW) technologies to ensure future dominance of the US and its allied nations within the electro-magnetic spectrum (EMS) across all domains. These advanced EW technologies will encompass the following technical areas: data collection, artificial intelligence (AI) and machine learning (ML), modeling and simulation, algorithm design and development, hardware development, testing (in the lab and in the field), and analysis.

Communication Between Prospective Offerors and Government Representatives: Dialogue between prospective offerors and Government representatives is encouraged until the Call is issued. Technical and Contracting communication will be managed by the POCs listed below, until Call is issued. All communication after Call is issued shall go through the Contracting POC below.

Discussions with any of the POCs shall not constitute a commitment by the Government to subsequently fund or award any proposed effort. No guidance related to technical approach will be given. However, questions related to the objectives of the effort or prior similar efforts may be answered. Only Contracting Officers are legally authorized to commit the Government. If there is any doubt as to whether a response provides a competitive advantage, the answer will be posted publicly to SAM.gov. For offerors whose white papers are not selected to continue to proposal stage, notification and feedback will be managed by the Contracting POCs.

Address technical questions to the Technical POC:

Gary Kaufman, Project Engineer, AFRL/RWYE
2241 Avionics Circle, WPAFB OH 45433
937-713-4007 or gary.kaufman.1@us.af.mil

Address contracting questions to the Contracting POC:

Jennifer M. Skalski, Contracting Officer, AFRL/RWKS
2130 Eighth Street, Area B, Bldg. 45, WPAFB OH 45433
937-713-9837 or jennifer.skalski@us.af.mil

Caleb Rose, Contract Specialist, AFRL/RWKS
2130 Eighth Street, Area B, Bldg. 45, WPAFB OH 45433
937-713-9965 or caleb.rose.1@us.af.mil

Full Text Announcement

- I. Program Description:** Air Force Research Laboratory, Sensors Directorate, Spectrum Warfare Division (AFRL/RYW), is announcing its intent to solicit proposals under this “BAA with Calls”. Solicitations for white papers/proposals will be accomplished via calls. The calls will encompass the following effort:
1. **Statement of Objective/Description of Technical Area(s):** See Attachment 6, Statement of Objectives (SOO).
 2. **Within Scope Modifications:** Potential offerors are advised that due to the inherent uncertainty of research and development efforts, awards resulting from this announcement may be modified during performance to make within scope changes, to include but not limited to, modifications which increase overall contract ceiling amount.
 3. **Deliverable Items:**
 - a. Data Items: DD Form 1423-1 CDRLs will be utilized on contract awards. Applicable data items will be identified in each call. A sample listing is included within the Model Contract, as attached to this BAA.
 - b. Software: Software deliverables are TBD per individual call, if applicable.
 - c. Hardware: Hardware deliverables are TBD per individual call, if applicable.
 - d. Other: TBD per individual call, if applicable.
 - e. Significant end Items: Not Anticipated, TBD per individual call, if applicable.
 4. **Schedule:**
 - a. Overall effort: TBD per individual call.
 - b. Data Items: TBD per individual call.
 - c. Software: TBD per individual call.
 - d. Hardware: TBD per individual call.
 5. **Other Requirements:**
 - a. This announcement incorporates FAR and supplement provisions and clauses by reference. The full text of provisions and clauses can be found at Acquisition.gov.
 - b. **Program security classification:** TBD per individual call. The highest level of classification anticipated is TS/SCI. If a DD254 is applicable, offerors must verify their Cognizant Security Office information is current with Defense Counterintelligence and Security Agency (DCSA) at www.dcsa.mil. The solicitation DD254 (Attachment 4) reflects the highest anticipated level of classification. Future calls will specify the applicable security requirements and include call specific DD254s.
 - c. **OPSEC:** See attached SOO for OPSEC guidance.

- d. **Export Control:** Information involved in this research effort may be subject to Export Control (International Traffic in Arms Regulation (ITAR) 22 CFR 120-131, or Export Administration Regulations (EAR) 15 CFR 710-774). If effort may be subject to export control, then a Certified DD Form 2345, Militarily Critical Technical Data Agreement, will be required to be submitted with proposal.
 - e. **Export-Controlled Items:** As prescribed by DFARS 225.7901-4, DFARS 252.225-7048, “Export-Controlled Item (JUN 2013)” is contained in this solicitation. This clause (or similar language) shall be contained in ALL resulting awards.
 - f. **Unique/Special Clauses:** TBD per individual call.
 - 1) **Organizational Conflict of Interest (OCI):** TBD on each call/award.
 - 2) **Associate Contractor Agreement (ACA):** TBD on each call/award.
 - 3) **Ground and Flight Risk Clause:** TBD on each call/award.
 - 4) **Payment Instructions:** TBD on each call/award.
 - 5) **Option:** TBD on each call/award.
6. **Other Information:**
- a. **Government Furnished Property (GFP) availability:** TBD per individual call. Attachment 3, Government Furnished Property List, will be included in applicable calls.

In accordance with FAR 45.201(b), the contractor is responsible for all costs related to making the property available for use, such as payment of all transportation, installation or rehabilitation costs.
 - b. **Government Furnished Information (GFI):** TBD per individual call.
 - c. **Base Support / Network Access:** TBD per individual call.
 - d. Multiple awards subject to Fair Opportunity are not anticipated.
 - e. **Data Rights Desired:** Data Rights will be determined per individual call. Data Rights desired by the contractor should be included with proposal submission as part of Section K (Reps and Certs). See attached model contract.

The Air Force Research Laboratory is engaged in the discovery, development, and integration of warfighting technologies for our air, space, and cyberspace forces. As such, rights in noncommercial technical data and NCS developed or delivered under this contract are of significant concern to the Government. The Government will therefore evaluate any restrictions on the use of noncommercial technical data, NCS, and NCS documentation which could result in transition difficulty or less-than full and open competition for subsequent development of this technology.

In accordance with DFARS 252.227-7013(b)(1) and 252.227-7014(b)(1), the Government shall receive unlimited rights in all noncommercial technical data and computer software developed exclusively with Government funds.

In accordance with DFARS 252.227-7013(b)(2) and DFARS 252.227-7014(b)(2), the Government shall receive Government Purpose Rights in all noncommercial technical data and computer software developed with mixed funding. “Developed with mixed funding” means, “development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract. Offerors that propose delivery of noncommercial technical data, NCS, or NCS documentation subject to Government Purpose Rights should fully explain how a portion of the data was developed at private expense. Specifically, offerors must explain what noncommercial technical data, NCS, or NCS documentation developed with costs charged to indirect cost pools and/or costs not allocated to a Government contract will be incorporated, how the incorporation will benefit the program, and address whether those portions or processes are segregable.

Offerors that propose delivery of noncommercial technical data with Limited Rights, NCS with Restricted Rights, or NCS documentation with Limited Rights will be considered. Proposals should fully explain what noncommercial technical data, NCS, or NCS documentation developed with costs charged to indirect cost pools and/or costs not allocated to a Government contract will be incorporated and how the incorporation will benefit the program and whether those portions or processes are segregable.

Offerors shall include the data rights assertions as required by DFARS 252.227-7017, Identification and Assertion of Restrictions on the Government’s Use, Release, or Disclosure of Technical Data or Computer Software. The assertions list is included in Section K and due at time of proposals. Assertions must be completed with specificity. Each assertion must identify the technical data or computer software to be delivered and the associated item, component, or process developed exclusively or partially at private expense to which it pertains. Nonconforming data rights assertion lists will not be accepted until submitted in accordance with DFARS 252.227-7017.

Terms used in this section are defined in the clauses at 252.227-7013, Rights in Technical Data-Noncommercial Items, and 252.227-7014, Rights in Noncommercial Computer Software and Noncommercial Computer Software Documentation.

THIRD PARTY SOFTWARE (COMMERCIAL AND NONCOMMERCIAL):

If any such software, noncommercial or commercial, is not reasonably identifiable at proposal submission, it must still be approved by the contracting officer prior to incorporation. This obligation to obtain pre-approval by the contracting officer, as described above, continues throughout contract administration.

Noncommercial Computer Software:

DFARS 252.227-7014(d) describes requirements for incorporation of third party noncommercial copyrighted computer software and computer software documentation and is incorporated as follows:

The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted computer software or computer software documentation in the software or documentation to be delivered under this contract unless the Contractor is the copyright owner or has obtained for the Government the license rights necessary to perfect a license or licenses in the deliverable software or documentation of the appropriate scope set forth in DFARS 252.227-7014(b), and prior to delivery of such—

- (1) Computer software, has provided a statement of the license rights obtained in a form acceptable to the Contracting Officer; or
- (2) Computer software documentation, has affixed to the transmittal document a statement of the license rights obtained.

In addition, all noncommercial computer software will receive the appropriate level rights set forth in DFARS 252-7014(b), which could include: Unlimited rights, GPR, Restricted Rights, or specifically negotiated license.

Commercial Computer Software:

For commercial computer software, the Government will neither accept nor execute a DD Form 250 for such software deliverables until the Contractor obtains from all third party software suppliers and/or vendors (Licensor) licenses for any commercial computer software to be delivered that are consistent with Federal Statutes, Federal Case Law, and Federal Regulations.

The following is a non-exhaustive list of terms and conditions which are inconsistent with Federal law and shall not be included in the commercial computer software license agreement between the Licensor and the Government:

1. The license shall not subject the Government to a contingent liability or a liability that is indefinite or indeterminate, including but not limited to: indemnification clauses, unilateral price increases, the right to attorney fees, automatic assessment of charges, or automatic renewal provisions. These provisions constitute obligations in advance or in excess of an appropriation and violate the Anti-Deficiency Act.

2. The license shall be governed by Federal Statutes, Federal Case Law, and Federal Regulations, and shall not be subject to the laws or jurisdiction of any municipality, state, or foreign country. The license shall not bind the Government to litigation in a particular forum or venue or require the Government to participate in arbitration.
3. The license shall not include non-substitution language that would preclude or limit the Government from using another vendor/reseller and/or product to fulfill Government requirements.
4. The Licenser shall not have the authority to unilaterally terminate the license. All remedies available shall be consistent with the Disputes and Termination Clauses in the underlying basic contract.
5. The Licenser shall not have the right to enter the premise or monitor Government networks for the purpose of auditing the use of the license.
6. The Licenser shall not have the authority to control or otherwise influence any litigation between a third party and the Government. The United States Department of Justice has the sole authority to represent the Government in all litigation matters.
7. The Licenser shall not use the fact that the Government is using the Licenser's products in any notification or advertisement to the public (e.g., no publicity rights permitted).
8. The license shall not require automatic updates or give Licenser the authority to unilaterally replace the software.

Additionally, the Contractor may be required to obtain licenses that comply with the following terms and conditions, based on the Government's needs:

1. The license shall not disclaim all warranties through use of an "as is" provision.
2. The license shall neither restrict the Government from using the product at various sites nor limit use of the product by various Government agencies or third parties performing work on behalf of the Air Force under the [PROGRAM NAME]. In performance of the [PROGRAM NAME], Government personnel as well as Government contractors may use the software, subject to any negotiated limits on number of users, as applicable.
3. The license shall not limit the Government's use of the software at other Government and Government contractor sites.] [The license shall authorize the Government to use the software at the following sites: [list].
4. The license shall not restrict the Government from copying or embedding elements of accessible code into other applications (e.g., nesting code, derivative works).

The Contractor may obtain agreement from the Licensor to insert the clause below in its respective software licenses intended to be transferred to the Government:

“In the event that any of the provisions of the [Software License] are determined to be inconsistent with Federal law or do not otherwise satisfy the Government's needs, the parties to the [Software License] hereby agree that such provisions shall be null and void as they pertain to the Government. Specifically, the following sections are hereby deleted from the [Software License] [and/or amended as indicated below]:

[Section X: deleted; Section Y: amended as follows [...]]”

If the Licensor will not agree to the terms and conditions cited herein and/or as contained in DFARS 227.72, the Contractor shall retain the current license on behalf of and for the benefit of the US Government if permissible under its license and such use will not subject the Government to the terms of the license. If the software in question is required to be delivered to the Government, the Licensor must grant the Government a sublicense that allows the Government to use the software to meet its requirements.

The Contractor shall provide documentation to clearly correlate or map any commercial computer software to be delivered to:

- a) Contract Line Item Numbers (CLINS);
- b) Contract Deliverables (CDRLS);
- c) Paragraphs in the statement of work (SOW); and
- d) Portions of any functional block diagrams and/or system architecture diagrams, so that it can be readily determined where certain commercial computer software corresponding to certain software license agreement(s) are physically located on the system to be delivered under the contract.

II. Award Information

1. **Anticipated Award Date:** TBD per individual call.
2. **Anticipated funding:** TBD per individual call, to include anticipated funding profile.

III. Eligibility Information

1. **Eligible Offeror:** This is an unrestricted solicitation. Businesses / Educational Institutions of all sizes are encouraged to propose on all or any part of this solicitation under each call.
2. **Cost Sharing or Matching:** Cost Sharing is not required.

3. **Federally Funded Research and Development Centers:** The following guidance is provided for Federally Funded Research and Development Centers (FFRDCs) contemplating submitting a proposal, as either a prime or subcontractor. FAR 35.017-1(c)(4) prohibits an FFRDC from competing with any non-FFRDC concern in response to a Federal agency request for proposal for other than the operation of an FFRDC (with exceptions stated in DFARS 235.017-1(c)(4)). There is no regulation prohibiting an FFRDC from responding to a solicitation. However, the FFRDC's sponsoring agency must first make a determination that the effort being proposed falls within the purpose, mission, general scope of effort, or special competency of the FFRDC, and that determination must be included in the FFRDC's proposal. In addition, AFRL must make a determination that the work proposed would not place the FFRDC in direct competition with domestic private industry. Only after these determinations are made, would a determination be made concerning the FFRDC's eligibility to receive an award.
4. **Government Agencies:** If a Government agency is interested in performing work, contact the Program Manager identified in the BAA. If those discussions result in a mutual interest to pursue your agency's participation, the effort will be pursued independent of this announcement.
5. **Other:**
 - a. **Foreign participation:** Foreign participation is not authorized at the prime level.
 - b. This acquisition involves data that are subject to export control laws and regulations. Only contractors who are registered and certified with the [Defense Logistics Agency](#) and have a legitimate business purpose may participate in this solicitation. Contact the U.S./Canada Joint Certification Program Office, Defense Logistics Agency, Logistics Information Services J34, HDI Federal Center, 74 Washington Avenue N., Battle Creek, Michigan 49037-3084, (1-800-352-3572) or the Joint Certification Program Office (JCO) at JCP-Helpdesk@dla.mil for further information on the certification process. You must submit a copy of your approved DD Form 2345, Militarily Critical Technical Data Agreement, with your proposal.
 - c. There are no limits on the number of white papers/proposals an offeror may submit.
 - d. **You may be ineligible for award if all requirements of this solicitation are not met on the proposal due date as identified above.**

IV. White Paper/Proposal and Submission Information

1. **Overview:** White papers and/or proposals submitted under a call shall be in accordance with the instructions provided both in the specific call and this announcement. Each call will identify itself as a one-step or two-step process. For individual calls, the Government intends to review resulting white papers/proposals and award all, some, or non of the proposal received without negotiations/discussions. However, the Government reserves the right to negotiate with those offeror(s) whose proposal is selected for funding.

Offerors should be alert for any BAA amendments that may change proposal requirements or permit extensions to the proposal submission date.

For additional information, a copy of the Broad Agency Announcement (BAA) Guide for Industry is located at

<https://www.afrl.af.mil/Portals/90/Documents/HQ/BAA%20Ind%20Guide%202020.pdf?ver=7AivkWvoUoptKgypgCuIvw%3d%3d>

2. **White Paper Instructions (Two Step):**

- a. **General:** The *FIRST STEP* requests a white paper and a rough order of magnitude (ROM) cost. The white paper shall include a discussion of the nature and scope of the research and the offeror's proposed technical approach. The Government will review the white papers in accordance with the FIRST STEP Peer or Scientific Review criteria, set forth in Section V below. Based on this review, the Government will determine which of them have the potential to best meet the Air Force's needs. Offerors will be notified of the disposition of their white paper. It is anticipated that Government review of the white papers submitted will take 30 working days. Those offerors submitting white papers assessed as meeting Air Force needs will be asked to submit a technical and cost proposal. Those offerors not requested to submit a technical and cost proposal will be notified but may, however, still elect to submit a technical and cost proposal. An offeror submitting a proposal without first submitting a white paper **will not** be eligible for an award. The cost of preparing white papers in response to this Solicitation is not considered an allowable direct charge to any resulting or any other contract; however, it may be an allowable expense to the normal bid and proposal indirect cost as specified in FAR 31.205-18.
- b. **Page Limitation:** The White Paper shall be limited to **(TBD per individual call)** pages, prepared and submitted in Word format. Font shall be standard 10-point business font Arial. Character spacing must be "normal," not condensed in any manner. Pages shall be double-spaced (must use standard double-space function in Microsoft Word), double-sided (each side counts as one page), 8.5 by 11 inches, with at least one-inch margins on both sides, top and bottom. All text, including text in tables and charts, must adhere to all font size and line spacing requirements listed herein. Font and line spacing requirements do not have to be followed for illustrations, flowcharts, drawings, and diagrams. These exceptions shall not be used to circumvent formatting requirements and page count limitations by including lengthy narratives in such items. Pages shall be numbered starting with the cover page being Page 1, and the last page being no greater than Page (TBD per individual call). The page limitation covers all information including indices, photographs, foldouts (counted as 1 page for each 8.5 by 11 portion) tables, charts, appendices, attachments, resumes, etc. The Government will not consider pages in excess of these limitations.
- c. **Format:** The white paper will be formatted as follows:
 - 1) Section A: BAA Number, Title of Program, Name of Company, Business Size, Company's Commercial and Government Entity (CAGE) number, Unique Entity Identifier (UEI) number, Contracting POC and Technical POC with appropriate telephone numbers, fax numbers, and email addresses for the POCs.
 - 2) Section B: Period of Performance and Task Objectives;

- 3) Section C: Technical Summary and Proposed Deliverables; and
- 4) Section D: Cost of Task (Rough Order of Magnitude (ROM)).
- d. Technical Portion: The technical portion of the white paper shall include a discussion of the nature and scope of the research and the offeror's proposed technical approach/solution. It may also include any proposed deliverables. Resumes, descriptions of facilities and equipment, a proposed Statement of Work are not required at this point.
- e. Cost Portion: The cost portion of the white paper shall include a ROM cost estimate. No detailed price or cost support information should be forwarded; only a time-phased bottom line figure should be provided.
- f. Other Information: Multiple white papers within the purview of this announcement may be submitted by each offeror. If the offeror wishes to restrict its white papers, they must be marked with the restrictive language stated in FAR 52.215-1(e).
- g. White Paper/Proposal Content Summary: You may be ineligible for award if all requirements of this solicitation are not met on the proposal due date.

3. **Proposal Instructions (One Step and/or Request for Proposal):**

a. **General Instructions:**

- 1) Offerors will submit a technical and cost proposal within TBD working days of the Request for Proposal (**TBD for each call/RFP**). After receipt, proposals will be reviewed in accordance with the award criteria as defined in the call. Proposals will be categorized and subsequently selected for negotiations.
- 2) Offerors should apply the restrictive notice prescribed in FAR 52.215-1(e) Instructions to Offerors—Competitive Acquisition.
- 3) Technical/management and cost/business volumes should be submitted in separate volumes and must be valid for 180 days.
- 4) Proposals must reference the announcement number (FA8650-22-S-1004) and call name/number and relevant technical area(s).
- 5) Offerors must submit one (1) electronic copy of their proposals to the Contracting POC via both DoD SAFE and email.
- 6) Offerors are advised that only Contracting Officers are legally authorized to contractually bind or otherwise commit the Government.
- 7) The cost of preparing proposals in response to this BAA is not considered an allowable direct charge to any resulting or any other contract; however, it may be an allowable expense to the normal bid and proposal indirect cost as specified in FAR 31.205-18.
- 8) Acceptance of classified technical proposal or cost volume submissions will be TBD per individual call.

b. Technical/Management Proposal Solicited via Calls (One Step):

- 1) Page Limitations: The following describes proposal page limitations:
 - a) The Technical/Management Proposal shall be limited to **(TBD per individual call)** pages.
 - b) Font shall be standard 10-point business font Arial.
 - c) Character spacing must be “normal,” not condensed in any manner.
 - d) Pages shall be double-spaced (must use standard double-space function in Microsoft Word), double sided (each side counts as one page), 8.5 by 11 inches, with at least one-inch margins on both sides, top and bottom.
 - e) All text, including text in tables and charts, must adhere to all font size and line spacing requirements listed herein. Font and line spacing requirements do not have to be followed for illustrations, flowcharts, drawings, and diagrams. These exceptions shall not be used to circumvent formatting requirements and page count limitations by including lengthy narratives in such items.
 - f) Pages shall be numbered starting with the cover page being Page 1, and the last page being no greater than Page (TBD per individual call). The page limitation covers all information including indices, photographs, foldouts (counted as 1 page for each 8.5 by 11 portion) tables, charts, appendices, attachments, resumes, etc.
 - g) The proposal page limit does not include the offeror’s proposed Statement of Work (SOW); however, the same formatting rules apply to the SOW, which is limited to (TBD per individual call) pages.

NOTE: The Government will check the proposal and SOW for conformance to the stated requirements. Any pages in excess of the stated page limitation will not be considered for review purposes.
- 2) The Technical/Management proposal(s) shall include a discussion of the nature and scope of the technical approach. Additional information on prior work in this area, descriptions of available equipment, use of base support (if desired), data and facilities and resumes of personnel who will be participating in this effort should also be included as attachments to the technical proposal. This volume(s) shall include a SOW(s) detailing the technical tasks proposed to be accomplished under the proposed effort and suitable for contract incorporation. Do not include any proprietary information in the SOW. In addition to the contractor proposed SOW, a Government generated SOW Supplement containing additional contracting requirements will be included in any resulting contracts.
- 3) Any questions concerning the technical proposal or SOW preparation shall be referred to the Technical POC listed in Overview on page 3 of this solicitation.

c. Cost/Business Proposal Solicited Via Calls (One-Step or RFP):

- 1) Separate the proposal into a business section and cost section. Adequate Price Competition is anticipated for each call.
 - a) The Model Contract for FAR-based contracts is provided as the attachment to this document. No sample is provided for Other Transactions. Note that this Model Contract provides examples of clauses that may be included in final contracts and provides a basic contract structure. Contracts that are ultimately awarded against the individual calls may vary based on individual program requirements, negotiated terms and conditions. Not all terms and conditions in the Model Contract are applicable to all calls/contracts.
 - b) The business section should contain all business aspects to the proposed contract, such as type of contract, any exceptions to terms and conditions of the Model Contract, any information not technically related, etc. Provide rationale for exceptions to any portion of the Model Contract.
 - c) Identify any technical data that will be delivered with less than unlimited rights.
 - d) Subcontracting Plans: For efforts to exceed \$750,000, Subcontracting Plans shall be submitted in the cost/business proposal. Reference FAR 19.704, DFARS 219.704, and AFFARS 5319.704(a)(1) for Subcontracting Plan requirements. Small business concerns are exempt from this requirement.
 - e) Limitations on Pass-Through Charges: As prescribed in FAR 15.408(n)(1) & 15.408(n)(2), provisions 52.215-22, "Limitations on Pass Through Charges-Identification of Subcontract Effort (Oct 2009)," apply. Justification for exceeding the limits must be provided with the proposal.
 - f) Complete the Representations and Certifications (Section K - attached to this document) and submit with all proposals. Representations and Certifications (Section K) can be found at Attachment 2. Offerors may also be required to submit updated or supplemental Certifications and Representations based on the specifics of their proposal.
 - g) If an offeror proposes the use of Government Furnished Property (GFP), other than GFP identified in the call (if applicable), the offer must specifically identify each piece of GFP in the Cost/Business Proposal and propose and substantiate a rental cost for evaluation purposes in accordance with FAR 45.202. Include the following information in the proposal:
 - i. A list describing all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);
 - ii. The dates during which the property will be used and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;

- iii. The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges; and
 - iv. The voluntary consensus standard or industry leading practices and standards to be used in the management of Government property, or existing property management plans, methods, practices, or procedures for accounting for property.
- 2) **Cost Element Breakdown:** Clear, concise, and accurate cost proposals reflect the offeror's financial plan for accomplishing the effort contained in the technical proposal. As a part of its cost proposal, the offeror shall submit the information outlined below, together with supporting breakdowns. All direct costs (labor, material, travel, computer, etc.) as well as labor and overhead rates should be provided by contractor fiscal year (CFY). Detailed cost element breakdowns by Government Fiscal Year or calendar year are not required. The supporting schedules may include summary level estimating rationale used to generate the proposed costs. The cost element breakdown(s) should include the following if applicable.
- a) **Direct Labor:** Direct labor should be detailed by number of labor hours by category of labor.
 - b) **Labor and Overhead Rates:** Direct labor hours, with their applicable rates, must be broken out and the bases used clearly identified. The source of labor and overhead rates and all pricing factors should be identified. For instance, if a Forward Pricing Rate Agreement (FPRA) is in existence, that should be noted, along with the Administrative Contracting Officer's (ACO's) name and telephone number. If the rates are based on current experience in your organization, provide the historical base used and clearly identify all escalation, by year, applied to derive the proposed rates. If computer usage is determined by a rate, identify the basis used and rationale used to derive the rate.
 - c) **Material/Equipment:** List all material/equipment items by type and kind with associated costs and advise if the costs are based on vendor quotes, data and/or engineering estimates; provide copies of vendor quotes and/or catalog pricing data.
 - d) **Subcontractor Costs:** Submit all subcontractor proposals and analyses with your cost proposal (See FAR 15.404-3(b)). If the subcontractor will not submit cost and pricing information to the offeror, this information must be submitted directly to the Government for analysis. On all subcontracts and interdivisional transfers, provide the method of selection used to determine the subcontractor and the proposed contract type of each subcontract. An explanation shall be provided if the offeror proposes a different amount than that quoted by the subcontractor. The offeror's proposal must:
 - i. Identify principal items/services to be subcontracted.

- ii. Identify prospective subcontractors and the basis on which they were selected. If non-competitive, provide selected source justification.
 - iii. Identify the type of contractual business arrangement contemplated for the subcontract and provide rationale.
 - iv. Identify the basis for the subcontract costs (e.g., firm quote or engineering estimate, etc.).
 - v. Identify the cost or pricing data submitted by the subcontractor.
 - vi. Provide an analysis of the proposed subcontract in accordance with FAR 15.404-3(b). Provide an analysis concerning the reasonableness, realism and completeness of each subcontractor's proposal. If the analysis is based on comparison with prior prices, identify the basis on which the prior prices were determined to be reasonable. The analysis should include, but not be limited to, an analysis of: materials, labor, travel, other direct costs and proposed profit or fee rates.
- e) **Special Tooling or Test Equipment:** When special tooling, and/or test equipment is proposed, attach a brief description of items and indicate if they are solely for the performance of this particular contract or project and if they are or are not already available in the offeror's existing facilities. Indicate quantities, unit prices, whether items are to be purchased or fabricated, whether items are of a severable nature and the basis of the price. These items may be included under Direct Material in the summary format.
- f) **Consultants:** When consultants are proposed to be used in the performance of the contract, indicate the specific project or area in which such services are to be used. Identify each consultant, number of hours or days to be used and the consultant's rate per hour or day. State the basis of said rate and give your analysis of the acceptability of the consultant's rate.
- g) **Travel:** Travel costs must be justified and related to the needs of the project. Identify the number of trips, the destination and purpose. Travel costs should be broken out by trip with number of travelers, airfare, per diem, lodging, etc.
- h) **Computer Use:** Detail the amount and kind of computer usage, the cost, and how the costs were derived.
- i) **Facilities Capital Cost of Money:** If Facilities Capital Cost of Money is proposed, a properly executed DD Form 1861 is required.
- j) **Project Funding Profile:** Offerors should include a project funding profile by Government Fiscal Year (GFY) (1 Oct through 30 Sept) for budgetary purposes. This will enable the Government to easily identify program funding needs by GFY.
- k) If an offeror takes exceptions to the requirements called out in the announcement (e.g., base support, Government-furnished property (GFP), CDRLs), the exceptions should be clearly stated in the cost proposal.

- l) **Forward Pricing Rate Agreements:** Offerors who have forward pricing rate agreements (FPRA's) and forward pricing rate recommendations (FPRR's) should submit them with their proposal.
 - m) Cost/Business proposals have no page limitations.
- d. **Proposal Content Summary:** You may be ineligible for award if all requirements of this solicitation are not met on the proposal due date.

4. **Funding Restrictions:** N/A

V. White Paper / Proposal Review Information

1. **FIRST STEP – White Paper Peer or Scientific Review Criteria:** The Government will review White Papers to determine which of them have the potential to best meet the Air Force's needs based on the following criteria, which are listed in **equal** order of importance:
 - a. Unique and innovative approach proposed to accomplish the technical objectives. New and creative solutions and/or advances in knowledge, understanding, technology, and the state of the art.
 - b. The offeror's understanding of the scope of the technical effort.
 - c. Soundness of the offeror's technical approach.
 - d. Affordability (Proposed ROM Cost Estimate).
2. **SECOND STEP - Peer or Scientific Review Criteria:** Proposals will be reviewed using the criteria listed below. The technical aspect, which is ranked as the first order of priority, shall be reviewed based on the following criteria that are of **equal** order of importance.
 - a. **Technical:**
 - i. Unique and innovative approach proposed to accomplish the technical objectives. New and creative solutions and/or advances in knowledge, understanding, technology, and the state of the art.
 - ii. The offeror's understanding of the scope of the technical effort.
 - iii. Soundness of the offeror's technical approach including whether the proposal identifies major technical risks, clearly defines feasible mitigation efforts, and demonstrates related experience and qualifications of technical personnel.
 - iv. The potential to transition the research and development deliverables to future Government needs. Any proposed restriction on technical data or computer software will be considered.

- b. **Cost/Price:** The cost/price criterion includes the realism of the proposed cost. Cost/Price is a substantial factor, but ranked as the second order of priority. (If an offeror proposes the use of GFP other than any GFP identified in this BAA, and that proposed GFP provides the offeror an unfair competitive advantage, then FAR 45.202 requires rental equivalent be applied to the Cost Factor for evaluation purposes only).

3. Second Step/Proposal – Review and Selection Process

- a. **Categories:** Based on the Peer or Scientific Review, proposals will be categorized as Selectable or Not Selectable (see definitions below). The selection of one or more sources for award will be based on the Peer or Scientific Review, as well as importance to agency programs and funding availability.
 - i. **Selectable:** Proposals are recommended for acceptance if sufficient funding is available.
 - ii. **Not Selectable:** Even if sufficient funding existed, the proposal should not be funded.

Note: The Government reserves the right to award some, all, or none of proposals. When the Government elects to award only a part of a proposal, the selected part may be categorized as Selectable, though the proposal as a whole may not merit such a categorization.

- b. No other criteria will be used.
- c. Prior to award of a potentially successful offer, the Contracting Officer will make a determination regarding price reasonableness.

VI. Award Administration Information

- 1. **Award Notices:** Offerors will be notified whether their proposal is recommended for award on or about **(TBD for each call)**. The notification is not to be construed to mean that any contract is assured, as availability of funds and successful negotiations are prerequisites to any award.
- 2. **Administrative and National Policy Requirements:** See Section I.
- 3. **Reporting:** See BAA Paragraph I.3.a., Contract Data Requirements List (CDRL).

VII. Other Information

1. **Acquisition of Commercial Items:** Based upon market research, the Government is not using the policies contained in Part 12, Acquisition of Commercial Items, in this solicitation. However, interested offerors may identify to the Contracting Officer their interest and capability to satisfy the Government's requirement with a commercial item within 15 days of this notice.
2. **Support Contractors:** Only Government employees will participate in Peer or Scientific Reviews. Offerors are advised that employees of commercial firms under contract to the Government may be used to administratively process proposals, monitor contract performance, or perform other administrative duties requiring access to other contractors' proprietary information. These support contracts include nondisclosure agreements prohibiting their contractor employees from disclosing any information submitted by other contractors or using such information for any purpose other than that for which it was furnished.
3. **Feedback Sessions:**
 - a. **Contracts:** When requested, a Feedback Session will be provided with content consistent with the procedures that govern BAAs (FAR 35.016). The process will follow the time guidelines outlined in the award notice described in Paragraph VI.1.
4. **Item Unique Identification and Valuation.** It is DoD policy that contractors shall be required to identify the Government's unit acquisition cost for all deliverable end items for which Item Unique Identification applies. Therefore, proposals must clearly break out the unit acquisition cost for any deliverable items. See DFARS 211.274-3, Policy for Valuation, for more information. (Per DoD, "fully burdened unit costs" to the Government would include all direct, indirect, G&A costs, and an appropriate portion of fee). For more information, see the following website:
<https://www.acq.osd.mil/asda/dpc/ce/index.html>.
5. **Pre-Award Clearance:** Pursuant to FAR 22.805, a preaward clearance must be obtained from the U.S. Department Of Labor, Employment Standards Administration, Office Of Federal Contract Compliance Program's (OFCCP) prior to award of a contract (or subcontract) of \$10,000,000 or more unless the contractor is listed in OFCCP's National Preaward Registry <https://www.dol.gov/agencies/ofccp/pre-award>. Award may be delayed if you are not currently listed in the registry and the contracting officer must request a preaward clearance from the OFCCP.
6. **Updates of Publicly Available Information Regarding Responsibility Matters:** Any contract exceeds \$600,000; and when offeror checked "has" in paragraph (b) of the provision FAR 52.209-7, shall contain the clause/article, FAR 52.209-9 "Updates of Publicly Available Information Regarding Responsibility Matters."

7. **White Paper / Proposal Reminders:** You may be ineligible for award if all requirements of this solicitation are not met on the proposal due date.
- a. **Step One:** White Papers are due to the Contracting POC.
 - b. **Step One:** White Papers are due no later than the due date and time specified within individual call announcement.
 - c. **Step One and Step Two:** White Paper and Proposal page limits are strictly enforced.
 - d. **Step One and Step Two:** White Papers and Proposals must be submitted in the format specified.
 - e. **Step Two:** Proposals are due to the Contracting POC.
 - f. **Step Two:** The Cost/Business Proposal must contain all information described in the Cost/Business Proposal Submission Section.
 - g. **Step Two:** Offerors other than small businesses must include a subcontracting plan.
 - h. **Step Two:** Offerors who have Forward Pricing Rate Agreements (FPRA's) or Forward Pricing Rate Recommendations (FPRR's) should submit them with their proposal.
 - i. **Step Two:** If a DD254 is applicable, offerors must verify their Cognizant Security Office information is current with Defense Counterintelligence and Security Agency (DCSA) at www.dcsa.mil.
 - j. **Step Two:** If effort is subject to export control, offerors must submit a Certified DD Form 2345, Militarily Critical Technical Data Agreement, with proposal.

ATTACHMENTS

List of Attachments:

- 1. Model Contract
- 2. Section K- Representations and Certifications
- 3. Government Furnished Property List (if applicable)
- 4. DD 254 (if applicable)
- 5. CDRLs
- 6. Kaiju Statement of Objective(s)
- 7. Statement of Work (SOW) Supplemental Requirements